

OFFICE OF THE OMBUDS

This policy establishes guidelines for the responsibilities related to the Office of the Ombuds.

A. Purpose

The purpose of the Office of the Ombuds is to provide students, families, employees, and members of the school community with access to an independent, impartial individual who can facilitate a confidential and informal resolution of concerns, conflicts, and issues arising within Loudoun County Public Schools (LCPS), and who is authorized to bring systemic and organizational concerns to the attention of the Division Superintendent for resolution.

The resolution process provided by the Office of the Ombuds is not intended to replace or supersede the formal and/or legal procedures provided by the School Board or by law for the filing, investigation, and resolution of complaints asserted against, by, or on behalf of individual students or employees under other School Board policies and regulations. Rather, the services of the Ombuds supplement formal channels for the resolution of complaints. Use of the Ombuds is voluntary and is not a required step in any grievance or complaint procedure. In the absence of, or as an alternative to informal resolution, the Ombuds will provide those contacting them with information concerning how to access such formal procedures where applicable, but the Ombuds does not play any role in the School Division's formal complaint and resolution procedures.

The Office of the Ombuds shall operate under the Core Values of Independence, Impartiality, Confidentiality, and Informality, as encompassed in the International Ombuds Association's Code of Ethics and Standards of Practice set forth in this policy.

B. Scope of Authority and Independence. Although the Ombuds shall function independently from control, limitation, influence, or interference by any individual School Board member or LCPS employee, the Ombuds shall be supervised for budgetary and evaluative purposes by the Chief of Staff. The Ombuds shall be subject to all applicable policies of the School Board, including, but not limited to, School Board Policies 7014 and 7560. The Ombuds shall remain impartial/neutral and shall hold no other position within or beyond LCPS that might otherwise compromise their independence. The Ombuds shall have access to all necessary information and individuals within the School Division, to the extent permitted by law and School Board policies and regulations. The Ombuds does not have the authority to make binding decisions, mandate policies, regulations, or procedures, formally adjudicate issues for LCPS, nor participate in management functions, formal complaint and resolution procedures, and investigations.

The Chief of Staff, in consultation with the Division Superintendent and subject to the approval of the School Board, shall determine the appropriate level of funding and resources to be provided to the Office of the Ombuds. The Ombuds shall have the

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authority to select and manage any staff of the Office of the Ombuds, subject to all LCPS policies, regulations, and procedures governing the hiring, evaluation, and discipline of LCPS employees.

C. Protection from Retaliation. The Ombuds shall not be subject to retaliation by any person who may be the subject of a complaint and may only be removed from office upon the recommendation of the Division Superintendent, and subject to the approval of the School Board for unsatisfactory performance, as documented by the LCPS evaluation process; neglect of duty; misconduct; violation of School Board policies and regulations; or other just cause.

D. Standards of Practice

1. Receipt of Concerns and Confidentiality. Use of the services of the Ombuds is entirely voluntary. LCPS officers and employees may refer individuals or groups to the Office of the Ombuds but may not require individuals to contact or resolve concerns with that office. The Ombuds shall not communicate with any School Board member, officer, or employee referring an individual or group to them, nor report the specifics of any resolution or concern arising out of a referral to such member, officer, or individual, except as part of their annual data report to Division leadership -- and then only without revealing the identity of any particular individuals or groups that contacted the Ombuds.

- a. The Ombuds may assist constituents in person, by phone, or by letter or electronic communication, but, in all cases, they shall hold all communications with those seeking assistance in strict confidence and shall take all reasonable steps to preserve the confidentiality of those constituents to the extent permissible by law. This includes allegations that may be perceived to be violations of law, regulations, or policies. However, the Ombuds may unilaterally violate confidentiality if the Ombuds believes there is an imminent risk of serious harm, or if maintaining confidentiality would violate applicable law. Where circumstances exist that involve suspected child abuse and neglect, the Ombuds shall refer individuals to the appropriate individual or location where notice can be made, and, in the event the individual does not immediately contact Child Protective Services of suspected child abuse or neglect, the Ombuds shall do so as a mandated reporter per School Board Policy 7530. The Ombuds shall not otherwise reveal the identity of any individual contacting the Office of the Ombuds, nor reveal information provided in confidence that could lead to the identification of any individual contacting that office, without the express permission of that contact, and then only to the extent necessary to resolve the issue. The Office of the Ombuds is not

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exempt from court orders or requests for documentation under the Virginia Freedom of Information Act (FOIA) or any other applicable law, however the Ombuds will only create documentation necessary for the purpose of resolving a complaint or as required by law, and such records will be destroyed once a matter has been closed unless otherwise required by law or if directed to maintain such records by legal representation for the School Board. However, the Ombuds may disclose confidential information about a specific matter to the extent the Ombuds determines it is necessary to defend themselves against a formal complaint of professional misconduct.

- b. The Ombuds shall not respond to nor communicate with the public or the media regarding any specific individual or group complaint nor other confidential activities of the Office of the Ombuds. The Ombuds may, however, use the media and other means of public communication to promote the use of their services.
- c. The Ombuds shall exercise sole discretion over how best to respond to a concern, including, but not limited to: listening and helping to clarify constituents' concerns; providing information and exploring options available to those constituents, including informal advice, guidance, and navigation of LCPS procedures and departments, formal LCPS processes, and information regarding external resources or assistance; facilitating discussions to resolve issues and/or conducting informal mediation, where voluntarily agreed by all involved parties and as appropriate. However, the Ombuds shall never provide legal advice. As a condition of using the services of the Ombuds, those contacting the Ombuds for assistance shall be expected to acknowledge and accept the confidentiality principles outlined in D.1.

2. Access to Records. The Ombuds is deemed an LCPS "school official," as defined in Policy 8640 (Disclosure of Student Personally Identifiable Information) and the Student Right and Responsibilities Handbook (SR&R), and, in accordance with the Family Educational Rights and Privacy Act of 1974 (FERPA) and Policy 8610, is authorized to access students' education records without a parent's/guardian's or eligible student's consent if the Ombuds needs to review those education records in order to fulfill their professional responsibility.

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3. Neutrality and Impartiality. The Ombuds shall remain neutral, impartial, and unaligned. All members of the community served by the Ombuds may voluntarily seek their services and shall be treated with dignity and respect. The Ombuds shall consider the legitimate concerns and interests of all individuals and groups affected by the matter under consideration.

The Ombuds shall neither be associated with nor aligned with any formal or informal associations within, or connected to, LCPS, which might create the appearance of a conflict of interest or lack of neutrality. The Ombuds may meet with formal and informal associations for purposes of collaboration and explanation of the role and services provided by the Office of the Ombuds. Further, the Ombuds shall neither serve on any LCPS committee nor task force. The Ombuds shall have no interest or stake in, and incur no gain or loss from, the outcome of an issue.

E. Access to Legal Counsel. The Ombuds shall have access to Division Counsel as needed. In instances where Division Counsel and the Ombuds agree that outside legal counsel is required to provide advice or guidance to the Ombuds, in order to avoid compromising the impartiality and independence of the Ombuds, Division Counsel is authorized to retain such outside legal services but shall report the same to the Chief of Staff or Division Superintendent as soon as possible. In instances where Division Counsel does not agree that outside legal counsel is necessary to assist the Ombuds, the Ombuds shall request authority to retain outside legal counsel directly from the Chief of Staff or Division Superintendent. If necessary, the Ombuds may request authority to retain outside legal counsel from the School Board Chair.

F. Reporting Complaints to the Ombuds Does Not Constitute Notice of Claims. Communications made to the Ombuds shall not constitute notice to the School Board, LCPS, or its administration or employees, for any purpose, including claims asserted under local, state, or federal law, including, but not limited to FOIA, FERPA, Title VI or Title VII of the Civil Rights Act of 1964, the Individuals with Disabilities Education Act, or Section 504 of the Rehabilitation Act, or for any other legal or administrative purpose. However, the Ombuds shall refer individuals to the appropriate individual or location where notice can be made, and, in the event that an individual does not immediately contact Child Protective Services of suspected child abuse or neglect or report allegations of Title IX sexual harassment to the Title IX Coordinator, the Ombuds shall do so as a mandated reporter per LCPS School Board Policy 7530 and Regulation 8035. Where an individual is not able to reach an informal resolution of their concern through the Office of the Ombuds and desires to pursue a concern through other legal or administrative avenues, they must present their allegations in a timely manner, under any such applicable statutes or procedures.

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G. Limitations. The Office of the Ombuds shall not accept any formal complaints nor conduct investigations. However, the Ombuds may assist with the resolution of individual concerns asserted by employees or students at the request of the Division Superintendent or the Office of Division Counsel.

H. Involvement in Internal Audit, Division Counsel, Risk Management, Special Education, or Other Formal Investigations. Unless otherwise required by law, the Ombuds shall not intervene or participate in any formal complaints or investigations, including those which have been referred to or are under investigation by Child Protective Services, the Loudoun County Sheriff's Office (LCSO), LCPS Human Resources and Talent Development, Office of the Auditor General, Office of Division Counsel or outside legal counsel for LCPS, Title IX Office, or which have otherwise been referred by the School Board or LCPS for formal investigation. The Ombuds shall neither intervene nor participate in any complaints which are the subject of any pending special education mediation, due process hearing or litigation, or any other pending mediation, legal or administrative proceeding outside of LCPS, including but not limited to, lawsuits pending in any court, and charges/complaints filed with the Office of Civil Rights of the United States Department of Education, the United States Department of Justice, the United States Department of Labor or the Virginia Department of Labor and Industry, the Equal Employment Opportunity Commission, the Virginia Department of Education, or any other local, state, or federal agency.

The Ombuds may decline to inquire into any matter or may withdraw from any matter if the Ombuds believes involvement is inappropriate for any reason, including a matter not brought in good faith or which appears to be a misuse of the Ombuds' function.

I. Data Collection and Reporting. An important role of the Ombuds is the identification of trends, issues, and systemic concerns involving LCPS policies, regulations, procedures, and organizational practices, or lack thereof. The Ombuds shall compile data documenting the nature and number of concerns handled by their Office, and shall use such data, without breaching confidentiality or anonymity, to: make a report and recommendations to the School Board and Division Superintendent on an annual basis, and may provide supplementary reports if requested by the School Board—to include the activities conducted by the Office of the Ombuds; identify trends ; and inform recommendations for systemic and organizational change, improvement or resolution within LCPS, its schools, and departments. Notwithstanding the foregoing, the Ombuds will elevate systemic concerns and trends to the appropriate offices within the Division as they arise and will also include such relevant information in the annual report the Ombuds provides to the School Board.

The School Board authorizes the LCPS Ombuds to develop operational guidelines to implement this policy.

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The School Board and LCPS Ombuds shall be responsible for implementing and monitoring this policy.

Adopted: 2/28/23

Legal Refs: Va. Code § [22.1- 253.13:7](#)(C)(1)(4) and (6)

Cross Refs: [Policy 7014](#), Environments Free From Harassment Discrimination, and Abuse; [Policy 7530](#), Duty to Report Child Abuse and Neglect; [Policy 7560](#), Professional Conduct; [Policy 8610](#), Student Records; [Policy 8640](#), Disclosure of Personally Identifiable Information; [Regulation 8035](#), Title IX, Sex-Based Discrimination, Sexual Harassment; Student Right and Responsibilities Handbook (SR&R)